# TWO FACES OF ISLAMIC GOVERNANCE: MALAYSIA AND IRAN

[redacted]

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QUESTION: COMPARE AND EXPLAIN THE MAJOR DIFFERENCES BETWEEN TWO VARIANTS OF AN ISLAMIC STATE.

## List of Abbreviations

| Abbreviation | Meaning |
|---|---|
| JAKIM | Department of Islamic Development Malaysia (*Jabatan Kemajuan Islam Malaysia*) |
| MP | Member of Parliament |
| n.d. | No date |
| n.p. | No page |
| p. and pp. | Page and pages |
| PAS | Malaysian Islamic Party (*Parti Islam Se-Malaysia*) |
| PM | Prime Minister |
| RM (or MYR) | Malaysian Ringgit |
| UMNO | United Malays National Organisation (*Pertubuhan Kebangsaan Malayu Bersatu*) |

## Introduction

In comparing and explaining the major differences between two variants of an Islamic state, it is first essential to identify a definition of an 'Islamic state' that will hold for the duration of the comparison. There is not a consensus in the scholarship about what makes a state 'Islamic'. Were this paper to define an Islamic state narrowly, it would reduce the concept to a homogenous, rigid framework, ignoring the diversity of governance and jurisprudential models at work in the name of Islam. Such a narrow definition would also risk perpetuating existing stereotypes of Islamic states as uniquely oppressive, violent and draconian, all the while enshrining intra-religious cleavages within Islam by identifying singular strands or judicial schools of thought as 'truly' Islamic and discarding others. Accordingly, this paper will identify any state that claims to be Islamic as an Islamic state, significantly broadening the set of variant states that one can draw contrasts from while respecting claims to legitimacy from the states themselves.

This paper will compare and explain the major differences between Malaysia, which was publicly declared as an 'Islamic state' by the Prime Minister in 2000, and Iran, which established a *Shi'i* regime after the 1979 Islamic revolution (Bustamam-Ahmad, 2007, p.21). Through discussions on the varying examples of socio-religious interplay and the implementation of Islamic law – two foundational aspects of the Malaysian and Iranian states that exhibit wide variance between them – this paper will conclude that whereas the Malaysian variant of the Islamic state exercises decentralised control over Islam, concern for inter-religious harmony and limited, safeguarded implementation of *sharia*, the Iranian variant of the Islamic state exercises centralised control over Islam, a hegemony over religion and society, and strict implementation of *sharia*.

## Authority, Faith and Society

Expressions of socio-religious interplay and differences in societal norms are saliently exemplified by contrasting Malaysia with Iran. In Malaysia, religious struggles are mostly fought peacefully and democratically, with particular concern shown for the maintenance of religious harmony. Further, control over Islam in Malaysia is exercised in a decentralised manner, with federal authorities primarily holding coercive and suggestive power, leaving direct action regarding religious control to individual state governments. In contrast, the Iranian state, constructed according to the ideology of Ruhollah Khomeini, strictly and

centrally controls Islam. In Iran, Islam influences every aspect of society, clerics lead the country and expressions of Western culture are taboo.

## Malaysia's Distinctive Islamic State Identity

Unlike in Iran, the role of Islam in the Malaysian state has for decades been debated and disagreed upon by scholars. Prior to the 21st century, academics noted that, though it did 'not seem difficult for Malaysia to become an Islamic State', it was not commonly considered one (Mutalib, 1993, p.80). However, 'in early July 2001', PM Mahathir Mohamad declared that Malaysia was an Islamic state (Bustamam-Ahmad, 2007, p.21). The PM reached his conclusion after 'gathering seventy religious scholars and notables', who 'concluded that Malaysia unequivocally qualified as an Islamic state on the basis that its administrative, political and religious affairs were controlled by Muslims' (Saifulizam, 2001, n.p.; JAKIM, 2008, n.p., cited in Hamid and Ibrahim, 2017, p.182). After the PM's 2001 declaration, Malaysian bureaucrats gradually came to 'confidently view Malaysia as an Islamic state' on the basis that 'it is governed by Islamic values', which they understood from a universalist perspective to be values such as justice, equality and tolerance, among others (Bustamam-Ahmad, 2007, p.21). Other justifications from Malaysia for considering itself an Islamic state stem from 'definitions by *ulama*[1] and intellectuals' of an Islamic state (Martinez, 2001, p.492). Islamist voices from within Malaysia have since voiced their opinion on both the status of Islam's role in the Malaysian state and the ideal role an Islamic state would play. According to PAS research director Zulkifli Ahmad, for instance, 'an Islamic state means justice for every citizen' (Bustamam-Ahmad, 2007, p.20). Others from within the PAS parallel Zulkifli Ahmad, describing the Islamic state in Malaysia as protecting the 'equality and justice and tolerance of the interests of others' (Siddiq Fadhil, 1993, n.p., quoted in Mutalib, 1992, p.98). Consistent with the trend identified among Malaysian bureaucrats' confidence in Malaysia as an Islamic state, the PAS tends to identify universal values that the Islamic state in Malaysia would or does protect, further emphasising that an Islamic state is one 'which is peaceful and prosperous' and 'cherished and longed for by all who love peace and true justice' (Nagata, 1994, p.69; *PAS Document*, n.d., n.p., quoted in Bustamam-Ahmad, 2007, p.21). Under the assumption that Malaysia is an Islamic state, the fact that Malaysia is 'widely regarded' as one of the only 'Islamic states' to contain 'working democratic institutions' in Western discourse becomes incredibly relevant, especially considering the West's usual outspoken disdain for mixing religion with the State (Chin, 2018, p.399). Further breaking the stereotypes of religious states, 'in sharp contrast' to states like Iran, 'the vast majority of the struggles' in Malaysia over Islam 'are taking place in relatively democratic and largely peaceful ways' (Peletz, 2020, p.237). As such, the Malaysian expression of the Islamic state is one that is profoundly different from expressions in North Africa or the Middle East.

Malaysia's government retains a semi-decentralised degree of control over the status and practice of Islam within the nation. JAKIM, for example, 'formulates policy on Islam for the states' of Malaysia, drafting 'laws it then' disburses to the wider state governments and 'urging them to enact legislation' (Martinez, 2001, p.477). The existing structure is in place because 'Islam comes under the jurisdiction of individual states'; in contrast with unitary or dictatorial theocracies, in Malaysia, the federal government can only suggest changes to Islamic practice or encourage implementation, leaving the issue of taking firm action to the individual states (Martinez, 2001, pp.477-478). The federal government, however, has used its coercive powers to engage in pressure campaigns targeted at 'religious teachers in government-funded Islamic

[1] *Ulama* refers to scholars of Islamic doctrine and law.

schools' (Martinez, 2001, p.479) and to verify 'whether the standard *khutbah*[2] it provides to clerics is delivered' at mosques (Martinez, 2001, p.482). This decentralised structure contrasts heavily with Iran's, where most religious control is exerted from Tehran.

Due to Malaysia's religiously and ethnically pluralistic composition, religious harmony is a tenet of unique salience in Malaysian society. Cooperation between religions is built into the Constitution of Malaysia, which states that 'Islam is the religion of the Federation; but other religions may be practiced in peace and harmony' (Bustamam-Ahmad, 2007, p.19). This inclusion is significant, as nearly 40 percent of Malaysia's population is non-Muslim (Peletz, 2020, p.8). However, issues surrounding religious harmony have become ever more controversial through the 21st century. For instance, in the early 2010s, the government of Malaysia restricted the ability of a Catholic publication to refer to God as *Allah*. The civil courts in Malaysia found that 'freedom of religion extends only to practices and rituals that are essential and integral' for minority religions, and because the usage of *Allah* 'was never an integral part of' Christian practice, the prohibition of its usage was 'reasonable' (Ali, Ab Rahim and Salleh, 2013, pp.469-470). Additional justifications used by the presiding judges concerned the 'unnecessary confusion within the Islamic community' that would be caused by using the word *Allah* in the Christian publication (Ali, Ab Rahim and Salleh, 2013, p.469). The case drew the attention of Muslims and religious minorities alike in Malaysia, enhancing cleavages between the groups and proving the judiciary's willingness to become involved in actively protecting the status of Islam in Malaysia at the expense of religious minorities. Mirroring the outcome of the *Allah* case, researchers have found that 'discrimination against [religious] minorities has…grown rife' (Chin, 2018, p.404). Supporting claims of increasing minority discrimination are several occasions of JAKIM publicly labelling 'Christians as the "enemy" of Islam' (Chin, 2018, p.405) and imposed 'limits on the personal freedoms of non-Muslims…in the name of "Muslim sensitivities"' (Chin, 2018, p.404). Within Malaysia, experts have agreed that 'government support for Islam' has increased 'religious polarisation' (Dr Tan Chee Khoon, 1993, n.p., quoted in Mutalib, 1993, p.101). As such, one of the government's primary concerns and challenges in Malaysia remains harmony between religious groups, a struggle that an Islamic state like Iran would never face.

## Clerical Rule and Centralised Authority in Iran

The construction of the Islamic Republic of Iran followed closely to Ruhollah Khomeini's vision of an ideal Islamic state. In Khomeini's Iran, 'Islam cover[s] all aspects…of society including religion, economics, culture, international relations', *et cetera* (Plastun, 2005, p.138, cited in Filin *et al.*, 2022, p.866). Khomeini believed that the formation of the new Islamic Republic should not be undertaken by political figures, but rather that the Republic should be constructed and then governed solely by spiritual leaders (Filin *et al.*, 2022, pp.866-867). As such, in Iran, 'supreme power' is 'exercised by the Islamic jurists', and the state is governed 'according to Islamic law' (Filin *et al.*, 2022, pp.866-867). While experts would go on to 'run the day-to-day aspects of government', they 'would be supervised by a *faqih*',[3] with 'no need for a true parliament' (Chehabi, 1991, p.75). The Iranian bureaucracy and its decisions are 'publicly justified in terms of *Shi'i* orthodoxy' (Doostdar, 2018, p.8). The lack of democratic institutions in Khomeini's Iran was a feature – rather than a flaw – of the State; Khomeini ensured that 'secular parties were banned' after the emergence of the Islamic Republic, and he saw that 'very limited democratic elements' were introduced into the Iranian political system (Filin *et al.*, 2022, p.873; Hooglund and Royce, 1985, p.103).

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[2] A *khutbah* is a sermon given in Islam.
[3] A *faqih* is an Islamic jurist, an expert in *fiqh*.

Khomeini's regime quickly Islamised 'all spheres of public life', including through the prohibition of 'shared beaches, nightclubs, alcohol, romance movies, and modern Western music' (Filin *et al.*, 2022, p.874; Zubaida, 2007, p.109). Khomeini's vision of an Islamic state stands in stark contrast with the Malaysian variant; Islam plays a role in every segment of society; the state is run by clerics and 'Western decadence' is taboo.

The State's influence on Islam – and Islam's influence on the State – is unique in Iran. 'Religion enters prominently into political discourse' in the Islamic Republic (Zubaida, 2007, p.111). Islamic ideology among Iranian state clerics 'has four essential themes: …the primacy of Islam, the concept of *velayat-i faqih*,[4] the acknowledgement of Khomeini as leader and the special role of the revolutionary clergy' (Hooglund and Royce, 1985, p.104; Zubaida, 2007, p.118). The central government in Iran holds a large degree of control over expressions of religion in the state. One of the methods that the central government utilises to project control over religion is the widescale usage of vice police, who 'monitor whether…Islamic norms…are observed', and who administer 'fines', 'sanctions' and '*sharia* corporal punishment, imprisonment and the death penalty' (Filin *et al.*, 2022, p.874). The central government in Tehran is also structured so that all proposed legislation can be censored and scrutinised by the Council of Guardians, composed 'of Muslim jurists with wide powers' (Zubaida, 2007, p.107). Furthermore, in every Iranian city, a government-appointed *imam jomeh*[5] holds Friday prayers and sermons that serve as 'occasions for political exhortation and advocacy' (Zubaida, 2007, p.111). The Iranian state apparati protect themselves from infiltration by irreligious individuals by enforcing the rule that 'all those who stand for public office…demonstrate their "practical commitment to Islam and to the"' regime (Zubaida, 2007, p.111). This requirement is contrasted with Malaysia's pluralistic government, comprised partly of parties representing religious and ethnic minority groups and actors who actively criticise the ruling government. In stark contrast with Malaysia's decentralised control over Islam and struggle with maintaining religious harmony, control over Islam in Iran is incredibly centralised, with decisions and authority stemming directly from Tehran and *imam jomehs* answering to the central government.

## Islamic Jurisprudence

Another realm of incredible difference between the Malaysian and Iranian variants of an Islamic state lies in the versions of Islamic jurisprudence in place in both states. In Malaysia, a history of adherence to Islamic law intersects with its modern religiously pluralistic nature, leading to the establishment of parallel legal systems for its people: a *sharia* system for Muslims and a civil system for non-Muslims and appeals. The Malaysian *sharia* system is widely respectful of individual rights and capitalist values. In addition, safeguards exist to prevent inordinately harsh sentences from being meted out by *sharia* courts, contrasting Western visions of *sharia* as exclusively draconian. While tensions exist over the implementation of prescribed *hudud*[6] punishments in Malaysia, such tensions are mostly exclusive to the *sharia* system, protecting non-Muslims from Islamic jurisprudence. In contrast, in Iran, no parallel civil legal system exists, and no safeguards are in place against draconian measures taken by *sharia* courts; rather, Iranian *sharia* courts are permitted to sentence convicts using *lex talionis*[7] punishments.

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[4] *Velayat-i faqih* refers to the absolute authority of the (Islamic) jurist in Iran.
[5] An *imam jomeh* conducts Friday prayer and preaches sermons in Islam.
[6] *Hudud* refers to the penal laws of Islam.
[7] *Lex talionis* holds that criminals should be punished in the same way they harmed their victims.

## The Malaysian Dual Legal System and Safeguards

In Malaysia, two realms of debate exist regarding the implementation of Islamic law: the extent to which *sharia* should be implemented and whether *hudud*-prescribed punishments should be permitted. Historically, the states comprising what is today Malaysia implemented selections of *sharia* 'in conjunction with local customary law (*adat*)' (Bustamam-Ahmad, 2007, p.19; Hamid Jusoh, 1991, p.XIIIFF, cited in Nagata, 1994, p.66). Accordingly, for Malays, the practice of Islamic law was cultural, easing attempts to implement *sharia* in the modern state. In 1988, PM Mahathir Mohamad 'approved the establishment of a parallel [*sharia*] court system', which 'was made autonomous from and equal to the civil' court system (Chin, 2018, p.404). From 1988 onwards, Malaysian Muslims would 'be *exclusively* subject to the jurisdiction of the [*sharia*] courts in matters related to religion', and 'non-Muslims would remain subject to the jurisdiction of the civil courts' (Moustafa, 2013, p.779). The federal implementation of a *sharia* court system transformed Islamic law in Malaysia 'from being pluralistic and socially embedded to being codified and' institutionalised (Horowitz, 1994, n.p.; Hussin, 2007, n.p.; Moustafa, 2013, n.p.; Roff, 1967, n.p., cited in Moustafa, 2013, p.776). While a *sharia* court system was founded and given autonomy and equality to the existing civil court system in Malaysia, restrictions were put in place to prevent judicial malpractice. Such restrictions are 'collectively known as the 3-6-5 safeguards', as they hold that punishments imposed by *sharia* courts 'cannot exceed three years' imprisonment, six strokes of the cane and RM5000 in fines' (Abdul Hadi, 2002, p.30, cited in Hamid and Ibrahim, 2017, p.180). Other restrictions on the *sharia* system include that any appeals of *sharia* court decisions 'must be heard in a secular court' (Nagata, 1994, p.67). In addition to safeguards preventing *sharia* courts from handing out draconian sentences on the convicted, Malaysian *sharia* courts also show a 'commitment to rule of law practices and institutions [and] individual rights' and are 'exceedingly friendly to capitalist markets' (Peletz, 2020, p.236). Malaysia's *sharia* courts also 'point to a general commitment to legal liberalism' (Peletz, 2020, p.236). Out of respect for both its history of adherence to Islamic law and its religiously pluralistic modern nature, the dual system in Malaysia functions to protect religious harmony and is guarded from draconian court sentencing.

One cannot discuss Islamic law in Malaysia without attending to the tensions surrounding the implementation of *hudud*-prescribed sentencing. The civil court system in Malaysia broadly has jurisdiction over matters falling under *hudud*, 'although some amendments in 1985 and 1988 transferred…certain additional offences' to *sharia* courts, 'such as alcohol consumption and sexual misconduct (*zina*)' (Nagata, 1994, p.67). Even as *sharia* courts are permitted to issue penal sentences to the convicted, they are restricted by the 3-6-5 safeguards from meting out the full penalties prescribed by *hudud*. As such, parties emphasising a different variation of Islamic implementation in Malaysia have attempted to change the 3-6-5 safeguards. In 2016, a member of parliament presented the '*hudud* Bill', which sought to empower *sharia* 'courts to mete out heavier penalties than imposed at present against Muslim perpetrators of offences…except the death penalty' (Hamid and Ibrahim, 2017, pp.185-186). Attempts to change the rules surrounding *sharia* courts in favour of *hudud* penalties have resulted in moderate Muslim MPs suggesting that 'they could be regarded as *kafir*'[8] should they vote publicly against *hudud* laws (Nagata, 1994, p.77). Accordingly, though the dual system in Malaysia has the benefit of protecting religious minorities and the convicted from disproportionately severe sentencing, it would be false to claim that tensions within the *sharia* system do not exist.

[8] *Kafir* is the term referring to apostates in Islam.

## Judicial Absolutism in Iran

In Iran, punishments for criminal offences follow closely to Ruhollah Khomeini's interpretation of *sharia* and can include harsh *lex talionis* sentences, with no safeguards protecting the convicted from draconian punishments. During his period in exile, Khomeini advocated for – and later insisted on – the introduction of 'traditional [*sharia*] punishments' into the penal code of Iran (Filin *et al*., 2022, p.874). Khomeini believed that legal authorities 'would be sinful' if they failed to 'punish lawbreakers in accordance with' *sharia* (Filin *et al.*, 2022, p.874). It is therefore unsurprising that the Constitution of the Islamic Republic of Iran 'privileges' *sharia* 'as a source of legislation' (Zubaida, 2007, p.106). Beyond the privileged status that *sharia* enjoys in the Islamic Republic, in 1981, the penal code was updated with the codification of *lex talionis*, introducing 'gruesome punishments' for those convicted of breaking the law in Iran (Chehabi, 1991, p.79). It should be noted, however, that *lex talionis* is 'selectively used' in Iran, 'often with political objectives' rather than as a form of bringing justice to victims (Zubaida, 2007, p.108). In addition to the introduction of *lex talionis* into the Iranian penal code and the privileged status of *sharia* in the Constitution, in the aftermath of the Islamic Revolution 'all laws judged contrary to Islam' were 'invalidated' (Hooglund and Royce, 1985, p.104). Furthermore, Iranian 'courts have been ordered to apply' sentences and penalties 'recommended in *Shi'i* judicial sources' (Hooglund and Royce, 1985, p.104). In the Islamic Republic, the central government has 'the competence to decide when the provisions of Muslim law, however interpreted, are or are not binding' (Zubaida, 2007, p.107). In contrast with Malaysia, the central government in Iran strictly enforces and privileges their interpretation of *sharia* and can sentence criminals with incredibly harsh punishments under *lex talionis*, foregoing a civil judicial system and safeguards against abuses of sentencing by courts.

# Conclusion

The goal of this paper was to compare and explain the differences between the Malaysian and Iranian variants of an Islamic state. Through comparisons on the interactions between Islam and society, it has found that whereas Malaysia exercises decentralised control over Islam and is concerned with maintaining religious harmony among its populace, Iran's government exercises direct, centralised control over Islam and enforces religious hegemony in the state. Likewise, through comparisons of the implemented systems of Islamic law, it has found that whereas Malaysia constructed parallel legal systems (i.e., *sharia* and civil) to both respect its Muslim population and history and protect its non-Muslim population, Iran exercises an absolutist and draconian version of *sharia* on all its people, regardless of their degree of Islamic belief. Though this paper did not have the space to discuss other aspects of the Islamic state (e.g., women's rights), it can be reasonably expected that the trend of variation will hold. Accordingly, it can be concluded that the Islamic state is, at the very least, an incredibly heterogeneous phenomenon that exhibits a range of variation across different sectors of society.

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